

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 28, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**REGIONS BANK vs. JOEBEL PAULITE
Case No. CL24-04726**

Motion to Summary Judgment filed by Plaintiff

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

The unopposed motion is granted, as Plaintiff has presented evidence to show Defendant was loaned money by Plaintiff, agreed to repayment over time, and then defaulted on those payments. [See Declaration of Trena Farr, ¶¶3-13].

While summary judgment is granted, as to the principal amount of \$12,125.62 still owed on the lending agreement, and the prejudgment interest claimed in the amount of \$3,664.00, the amounts claimed for court costs and attorneys fees cannot be included within the summary judgment. Those amounts must be claimed in post-judgment papers, per CRC 3.1700 [costs] and 3.1702 [attorneys fees].

**BANK OF AMERICA N.A. vs. STELLA MALL
Case No. CL25-06057**

Motion by Defendant to Set Aside Default and Default Judgment

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

A proof of service for a summons that complies with statutory requirements creates a rebuttable presumption that service was proper. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025), §4:362, p. 66. “A declaration of service by a registered process server establishes a rebuttable presumption that the facts stated in the declaration are true.” 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group), §4:367, p. 66, citing Evidence Code §647.

One of the manners of service authorized for summons and complaint is substituted service. C.C.P. §415.20(b) authorizes substituted service by delivery if a copy of summons and complaint to the dwelling place of the person intended to be served, leaving it “in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age”, and thereafter mailing another copy to that same address, addressed to the person intended to be served.

Plaintiff has submitted evidence of valid substitute service. (Plaintiff's exhibits one and two.) The Court notes that the address where substitute service occurred is the same address that Defendant uses in filing the instant motion.

Defendant's declaration to the motion to set aside is insufficient to rebut the presumption that the service was proper. Defendant's declaration states that there was no personal service but fails to challenge proper substitute service.

Similarly, Defendant fails to set forth any other valid grounds to set aside and vacate default.

Defendant's motion to set aside default and default judgment is therefore denied.

WELLS FARGO BANK, N.A. vs. ANDREA DAROCHA
Case No. CL25-11400

Plaintiff's Motion to Deem Matters Admitted

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

BFSP LLC vs. 8077 HYDE ROAD AGRICULTURAL HOLDINGS, LLC; ET AL.
Case No. CU23-02729

Motion by Receiver for Approval of Final Accounting, Ratification and Discharge of Receiver, Exoneration of Receiver's Bond and Related Relief

TENTATIVE RULING

CRC 3.1184(a) directs a receiver to move for approval of a final account, discharge, and exoneration of bond.

CRC 3.1184(c) requires service of such a motion on the parties and any known creditors.

Notice of the motion or of the stipulation must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the order or stipulation, whether or not the person or entity is a party to the action or has appeared in it.

The proof of service filed for the motion papers and final accounting signed under penalty of perjury included an 8-page attachment, but no clear evidence is provided to confirm that this is a current and complete list.

Receiver and Receiver's counsel are therefore to appear, and provide explanation and confirmation under penalty of perjury that the 8-page list is a current and accurate list of all known creditors served with the final accounting motion and notice of advanced hearing.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA, LP.
Case No. CU25-06641

- 1). Motion by Plaintiffs to Compel Further Responses from Defendant LLAM to Requests for Admissions 1, 2, and 5-7;
- 2). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Requests for Admissions 4 and 5;
- 3). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Requests for Production 10-13, 15-16, 23-29 and 34;
- 4). Motion by Plaintiffs to Compel Further Responses from Defendant LLAM to Special Interrogatories 6 and 7; and

5). Motion by Plaintiffs to Compel Further Responses from Defendant WINNRESIDENTIAL to Special Interrogatories 14, and 16-23

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

**RUBY EVANS vs. WINDSOR VALLEJO CARE; ET AL.
Case No. FCS055755**

Motion to Tax Costs

TENTATIVE RULING

Defendants' motion to tax costs is granted in part and denied in part.

The court taxes the fees sought for BlackLight Consulting and Shore Law, LLC. These are labeled in Plaintiff's memorandum of costs as expert fees, which is consistent with the description of the work performed (Decl. of Chisholm, ¶¶ 10-11), but fees of experts not ordered by the court are expressly disallowed. (Code Civ. Proc. § 1033.5(b)(1).) Alternatively, the costs can be construed as "[i]nvestigation expenses in preparing the case for trial", which are also expressly disallowed. (Code Civ. Proc. §1033.5(b)(2).)

The court taxes the fees sought for ordinary witnesses Natasha Younger, Chaterine Mithamo, and Vanessa Glenn to the extent they exceed the amounts authorized by Government Code section 68093. Ordinary witness fees are allowed only "pursuant to Section 68093 of the Government Code." (Code Civ. Proc. § 1033.5(a)(7).) A witness who testifies as a percipient witness is entitled to only ordinary witness fees. (*Baker-Hoey v. Lockheed Martin Corp.* (2003) 111 Cal.App.4th 592, 602.) Plaintiff shall file with the court a declaration establishing the number of days and the mileage calculations for these witnesses.

The court taxes the \$11,413.32 in fees claimed to conduct a mock trial. The court finds that these fees were not reasonably necessary for the conduct of the litigation, but were merely convenient or beneficial to its preparation. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes all costs claimed for counsels' travel to attend the trial, including lodging, meals, a remote office, "trial supplies", and WiFi. Given the proximity of counsels' offices in Sacramento and San Francisco, the court finds that these costs were not reasonably necessary for the conduct of the litigation, but were instead merely convenient and beneficial to the conduct of the litigation. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes courier fees claimed for the jury deposit fees, the cellphone, and the lodgment of transcripts. Plaintiff has not presented sufficient evidence of the

reasonable necessity for these fees, when compared to the probable cost and availability of alternatives. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 132.)

The court taxes the costs of outside attorneys hired by counsel to oppose a motion to extend the automatic stay to non-debtor defendants and to perform “targeted research and briefing” on the issue of punitive damages. Plaintiff does not explain why Plaintiff’s retained team of attorneys could not do this work or why these attorneys fees could not be presented as part of Plaintiff’s motion for attorneys’ fees. Plaintiff has not established these fees were reasonably necessary. (Code Civ. Proc. § 1033.5(c)(2).)

The court taxes the costs for biography services. The court finds that these expenses are non-recoverable “[i]nvestigation expenses in preparing the case for trial.” (Code Civ. Proc. § 1033.5(b)(2).)

In all other respects, the motion is denied.

The trial technician’s fees are allowable as “the electronic presentation of exhibits, including costs of rental equipment and electronic formatting”. (Code Civ. Proc. § 1033.5(a)(13).)

“Mediation is fundamental to the conduct of litigation as it encourages the parties to settle their disputes before trial and exposes parties who fail to agree to a reasonable settlement proposal to the risk of a discretionary court determination that they should pay their opponent’s share of the failed mediation.” (*Gibson v. Bobroff* (1996) 49 Cal.App.4th 1202, 1209.) That the mediation was unsuccessful does not render it unnecessary. (*Id.* at 1204.)

Courier costs for the delivery of the hard drive have been adequately justified by the need for rush processing after Defendants failed to produce it during normal discovery. (Decl. of Chisholm, ¶ 20.) Given Witness Evans’ inability to transport himself without the use of a mobility scooter, the costs of rental were reasonably necessary. (*Id.* at ¶ 24.) The biography services to create a “narrative account” of Plaintiff’s life for the express purpose of presenting damages evidence before the jury were reasonably necessary. (*Id.* at ¶ 25.)

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

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